

FORM No.HCJD/C-121.
ORDER SHEET
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Case No. Writ Petition No.47617/2022

Zulfiqar Ali **Versus** Learned Ex-officio Justice of
Peace, etc.

S.No.of order/ Proceeding	Date of order/ Proceeding	Order with signature of Judge, and that of parties of counsel, where necessary.
5)	18.08.2022	Mr. Naveed Ahmed Khawaja, Advocate for the petitioner. Mr. Muhammad Yar Gondal, AAG with Muhammad Ahsan Younas, DIG (I.T.), Mohammad Zohaib Nasrullah Ranjha, S.P/C.R.O, Lahore, Mian Tanvir Ahmed DSP- Legal (C.P.O.), Shahid Siddique, DSP-Legal (Additional I.G. Investigation) and Malik Khuda Yar, Inspector-Legal. Sardar Khurram Latif Khan Khosa, Advocate/ <i>amicus curiae</i> .

The grievance ventilated by the instant constitutional petition filed under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973, (hereinafter *the Constitution*) is that the petitioner is being harassed by respondents No.3, 4 & 6 on the behest of respondent No.5 without any justification.

2. During the course of proceedings, a list of criminal cases was placed before the Court by respondent No.3/SHO, Police Station Kahna Nau, Lahore, which reflects that the petitioner was involved in number of criminal cases and the instant petition was filed to just pressurize the local police not to opt the due course of law.

3. Learned counsel for the petitioner controverted the stance taken by respondent No.3 in his report, while vehemently arguing that the petitioner stood acquitted by the courts of competent jurisdiction in number of cases, therefore, enlisting those cases against his name (petitioner)

tantamounts to an attempt to prejudice the mind of the Court. He has also placed on the record the judgments of acquittal rendered in few of those cases.

4. Arguments heard, record perused.

5. It is a common practice of police to produce a list of criminal cases registered against the petitioner, knocking at the door of this Court for relief, during the adjudication of petitions pertaining to bail, harassment and habeas corpus etc. It is done with the purpose of establishing criminal antecedents of the petitioner/accused seeking relief from the Court. Previous criminal history has, sometimes, profound impact and is often considered by the Courts while granting bail, which is a relief discretionary in nature, or other relief rooted in equity. It has been noticed by this Court that, more than often, criminal history of a petitioner is placed on the record which contains a number of cases in which he had already earned acquittal.

6. The criminal history must only reflect the cases where the petitioner/accused was convicted, including the suspended sentences and all pending First Information Reports, wherein he stands arraigned as an accused. In reckoning the number of cases as criminal history, the prosecution in cases resulting in acquittal or discharge, or when Court quashed the FIR or the prosecution stands withdrawn, cannot be enlisted/considered against the petitioner/accused.

7. The report filed by the Deputy Inspector General of Police (Information Technology), Central Police Office (CPO), Lahore states that in order to computerize the record of a criminal case, Police Station Record Management System (PSRMS) has been developed, in which all FIRs and

their related data is saved, including the final fate of a criminal case. All police stations in the Province have been connected with this system. It further reflects that instructions have been issued to all District Heads of Punjab Police to upgrade the record of all the accused after the decision of the court and a monthly review would be conducted. An accurate record of the accused according to the Court orders shall be maintained. Complete details of all the cases including the result of the trials shall be entered into the PSRMS. The correct record shall be produced before the Courts and in case of production of the record before this Court, the same shall be verified by the DSP, Legal of the District. In the light of aforementioned report, after the digitalization of the entire police record, obtaining an accurate criminal history of any person is just a 'click' away.

8. After earning acquittal from the court of competent jurisdiction, that criminal case has no relevance against the acquitted accused, therefore, mentioning any case, in which acquittal had been secured, in a list of cases against that person, is violative of his fundamental rights and an attempt to prejudice the mind of the Court through misrepresentation. The practice of submitting only a list of criminal case(s) registered against the petitioner/accused without the final fate or present status of such case(s) is hereby deprecated by this Court.

9. In order to meet the ends of justice, this Court is inclined to issue the following directions regarding the submission of criminal history of the petitioner/accused:-

- (i). While producing the record pertaining to the criminal history of any petitioner/accused, the list must show the status of criminal case(s) against him. Status connotes whether such case

is still pending or had culminated in acquittal, conviction, discharge or withdrawal, etc.

- (ii). Fate of every criminal case must be entered in the relevant Police Register maintained under the Punjab Police Rules, 1934, immediately after the pronouncement of judgment/order and the same should also be entered in PSRMS.
- (iii). The final fate of a criminal case is always decided by the court, therefore, better coordination mechanism must be evolved/improved to promptly convey the judgment/order of the court to the police station concerned for its entry in the relevant record.
- (iv). Instructions issued to the District Heads of Punjab Police regarding the submission of criminal history of the petitioner/accused by the Additional Inspector General of Police (Investigation) shall be strictly complied with.

10. As far as grievance of the petitioner regarding illegal harassment is concerned, respondent No. 3, SHO Police Station, Kahna Nau, Lahore files his report which reflects that neither the petitioner was harassed nor shall be harassed in future implying any illegal means. He is directed to remain within four corners of law and not to travel beyond the sphere of his legal duties.

11. The instant constitutional petition stands **disposed of** in the above terms.

(ALI ZIA BAJWA)
JUDGE

Approved for reporting

JUDGE